great man as he was reeling out his great eloquence.'[6] Mookerjee's eloquent defence of a supposedly 'Burkean' conservatism[7] in the face of the rising tide of Nehruvian progressivism is one of the many reasons that this debate is both absorbing and crucial in the context of India's constitutional history.

Nehru and Mookerjee were at opposite ends of the political spectrum in 1951. Both have enjoyed a long afterlife as icons for their respective followers and parties, afterlives that have proved to divide and animate the two central political and ideological poles of Indian politics and left enduring legacies for their successors. Both were debating foundational issues – the extent of the right to free speech, the space for dissent, the use and abuse of sedition, the balance of power between the organs of the state, constitutional propriety – that remain as relevant now as they were in 1951. Mookerjee is now known as the founder of the Bharatiya Jana Sangh, the forerunner of today's Bharatiya Janata Party, described as a religious conservative[8] and closely identified with Hindu nationalism. It is from him that the BJP claims political descent. Nehru, on the other hand, widely credited with laying the foundations of Indian democracy, often embodies liberalism, secularism and progressivism in the popular imagination – an incarnation in which he often finds himself pitted against the incumbent Prime Minister Narendra Modi. Like in 1951, foundational questions are up for renewed contestation, and the ghosts of Nehru and Mookerjee have found themselves once again in the field, reliving a similar debate.

In truth however, these public images with their lazy dichotomies are later creations: the legacies of Nehru and Mookerjee are as complicated as were the men themselves, to which their verbal duel testifies. The debate on the First Amendment upends many of the lax assumptions and easy caricatures to which the public images of both are subject. The position that Nehru articulated – the curbing of civil liberties including free speech in pursuit of a 'progressive' and 'socialist' government agenda – and the language that he deployed belies his current genteel liberal image. Mookerjee's passionate defence of individual liberty and constitutional morality, no less radical in newly independent India, drew from the tenets of classical liberalism of the whiggish variety – a far cry from religious